BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL No.29/2026

M/S NKB Construction Company
Through its Authorized Representative Najeeb Ullah,
Holding CNIC No.54303-4402570-5
Office at Naib Alkozai Cadet College, near College Colony Pishin.

.... Appellant

Versus

1. **Local Government Department, Through its Secretary office at civil Secretariat, Zarghoon road Quetta.**
2. **Chief officer Municipal corporation Pishin, District Pishin**
3. **Grievance Redressal Committee, through its Chairman Division Quetta.**
4. **M/s A.H.S Brothers**
5. **Assistant Engineer Municipal Corporation Pishin, District Pishin.**

.... Respondents

Quorum

1.	Habib-Ur-Rehman Jamot	Chairman PRC
2.	Iftikhar Ahmed	Member PRC
3.	Engr. Junaid Shah	Member PRC
4.	Iftikhar Ahmed Mir	Private Member PRC
5.	Syed Muheebullah	Private Member PRC

APPEAL UNDER RULE-56-A OF THE BALOCHISTAN PUBLIC PROCUREMENT RULES, 2014 AND ALL OTHER ENABLING PROVISIONS OF LAW AGAINST TSE NO. 252609859213 BY THE MUNICIPAL CORPORATION PISHIN AT DISTRICT PISHIN OF LOCAL GOVERNMENT DEPARTMENT GOVERNMENT OF BALOCHISTAN

For the Appellant: Najeeb Ullah
For the Respondents No. 3 Representative
For the Respondents No. 5 In Person

1. BRIEF FACTS

The Appellant is a licensed contractor duly registered with Pakistan Engineering Council (PEC) under Category C-3 (PEC No. 8766), as well as with FBR and BRA. The Chief Officer, Municipal Corporation Pishin, invited bids through PRQ No. 271/18-09-2025 under a Single-Stage Two-Envelope procedure for TSE No. 252609859213 titled *"Construction of PCC Drain at Worker Member Area Municipal Corporation Pishin"* with an estimated cost of PKR 7,000,000

Technical bids were opened on 03-10-2025. Out of 25 bidders, 20 were declared non-responsive. Financial bids were opened on 31-12-2025, whereby the Appellant was declared second lowest bidder, while Respondent No.4 was declared successful .

The Appellant contends that:

- The quoted financial rate was altered during evaluation.
- The evaluation report uploaded was not the correct report of the subject TSE.
- The process lacked transparency.
- 36 TSEs were processed simultaneously under a single NIT on the same date.

Aggrieved, the Appellant filed a complaint before the Complaint Redressal Committee (CRC) on 02-01-2026, which was rejected vide order dated 08-01-2026 on the ground of limitation without adjudicating on merits.

Hence, the present appeal under Rule 56-A of the BPPRA Rules, 2014.

2. PRAYER OF THE APPELLANT

The Appellant has prayed that:

1. The procurement process be declared as mis-procurement.
2. Status quo be maintained under Rule 56-A(6).
3. The Appellant be declared technically responsive.
4. The financial bids be re-evaluated in accordance with law.

3. REPLY OF THE RESPONDENTS

(i) Respondents No.2 & 5

The Respondents contested the appeal on the following grounds

The Appellant failed to meet mandatory eligibility criteria prescribed under Rules 34 and 35 of BPPRA Rules, 2014.

- The Appellant did not submit proof of three similar assignments.
- Technical documents were not properly signed/stamped.
- Audited financial statements for the last three years were not provided.
- The Appellant failed to properly approach the CRC within stipulated time; hence the appeal is time-barred and not maintainable

They prayed for dismissal of the appeal.

(ii) Respondent No.3

The representative orally submitted that the Appellant bypassed the CRC forum and rendered the present appeal incompetent .

4. POINTS FOR DETERMINATION

Upon hearing the parties and examining the record, the following points arise for determination:

1. Whether the Procuring Agency altered the quoted financial rate of the Appellant during evaluation?
2. Whether the complaint before CRC was filed within time?
3. Whether processing 36 TSEs under one NIT on the same date complied with the principles of transparency and fairness?
4. Whether the procurement process suffered from material irregularities warranting interference?

5. FINDINGS OF THE COMMITTEE

Issue No.1: Alleged Change of Quoted Rate

The record reflects that the Appellant was declared second lowest bidder, yet the award was made to another bidder without clear justification in the evaluation report.

It further transpires that:

- The originally quoted rate was allegedly altered during evaluation.
- No justification was recorded under Rule 40 for deviation.
- The uploaded evaluation report did not correspond to the subject TSE.

Such conduct, amounts to violation of:

Rule 4 (Principles of Procurement – fairness & transparency)

- Rule 10 (Transparency requirements)

- Rule 40 (Mandatory evaluation report disclosure

Issue No.2: Limitation Before CRC

The Appellant filed complaint on 02-01-2026 and produced acknowledgment of receipt. The CRC rejected the complaint on 08-01-2026 on limitation without recording cogent reasoning or referring to a specific limitation bar under Rule 56.

The Committee finds that the CRC order does not reflect proper application of mind nor contains legal reasoning substantiating the limitation finding.

Issue No.3: Processing of 36 TSEs Under Single NIT

The Procuring Agency issued one NIT covering 36 TSEs with same submission and opening date Given that:

- All tenders were manual;
- Same agency processed all bids;
- Same day opening was scheduled;

Such arrangement raises serious concerns regarding:

- Practical feasibility of proper scrutiny;
- Equal opportunity;
- Transparency;
- Value for money assessment.

This practice is inconsistent with Rule 4 and defeats procedural fairness.

Additional Irregularities Observed

The Committee further observes:

- Uploading incorrect evaluation report on the Authority's portal;
- Failure to record clear reasons for acceptance/rejection of bids;
- Inadequate documentation standards;

6. DECISION

After careful consideration of pleadings, record, and arguments, this Committee holds as follows:

1. The procurement process suffered from material irregularities, including lack of transparency, improper evaluation reporting, and procedural inconsistencies.
2. The CRC order dated 08-01-2026 is legally unsustainable due to absence of reasoned findings on limitation.
3. The evaluation process in respect of TSE No. 252609859213 stands vitiated due to procedural lapses and non-compliance with mandatory provisions of the BPPRA Rules, 2014.

Accordingly, it is hereby ordered:

- The impugned award in favour of Respondent No.4 is set aside.
- The Procuring Agency is directed to Re- tender the TSE No 252609859213 strictly in accordance with BPPRA Rules 2014,:
- If any payment has been made during pendency of proceedings, the same shall be the liability of the Procuring Agency.
- Compliance report shall be submitted to this Committee within fifteen (15) days.

The Appeal is disposed of in the above terms

Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

25/02/2026.

Iftikhar Ahmed Sanjrani

25/02/2026

Member
Procurement Review Committee
BPPRA

Engr. Junaid Shah

25/02/26

Member
Procurement Review Committee
BPPRA

Ifthikhar Ahmed Mir

25/2/2026

Member
Procurement Review Committee
BPPRA

Syed Muheebullah, Advocate

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Member
Procurement Review Committee
BPPRA